

SECOND SCHEDULE.

Section 5.

AMENDMENTS CONSEQUENTIAL ON AMENDMENT TO SECTION 115.

Provision of Army Act to be modified.	Modification to be made.
Section 31 (1), (4), (5), (7), (8).	For the words "or vessels" wherever they occur there shall be substituted the words "vessels or aircraft." For the words "or vessel" wherever they occur there shall be substituted the words "vessel or aircraft."
Section 115 (3), (4), (6), (7), (8), (9).	For the words "and vessels" wherever they occur there shall be substituted the words "vessels and aircraft." For the word "vessels" where it secondly and thirdly occurs in subsection (3) there shall be substituted the words "vessels and aircraft." For the words "or vessel" wherever they occur there shall be substituted the words "vessel or aircraft." For the words "or vessels" there shall be substituted the words "vessels or aircraft."
Sections 116, 117, 119, and 121.	For the words "or vessels" wherever they occur there shall be substituted the words "vessels or aircraft." For the words "or vessel" wherever they occur there shall be substituted the words "vessel or aircraft."

CHAPTER 3.

An Act to give statutory effect for a limited period to resolutions varying or renewing taxation, and to make provision with respect to payments and deductions made on account of any temporary tax between the dates of the expiration and renewal of the tax.

[25th April 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where a resolution is passed by the Committee of Ways and Means of the House of Commons (so long as it is a Committee of the whole House) providing for the variation of any existing tax, or for the renewal for a further period of any tax in force or imposed during the previous financial year, whether at the same or a different rate, and whether with or without modifications, and the resolution contains a declaration that it is expedient in the public interest that the resolution should have statutory effect under the provisions of this Act, the resolution

Resolutions varying or renewing tax to have statutory effect for a limited period.

shall, for the period limited by this section, and subject to the provisions of this Act, have statutory effect as if contained in an Act of Parliament, and, where the resolution provides for the renewal of a tax, all enactments which were in force with reference to that tax as last imposed by Act of Parliament shall, during the said period, and subject to the provisions of this Act, have full force and effect with respect to the tax as renewed by the resolution :

Provided that—

- (a) The resolution shall cease to have statutory effect if it is not agreed to, with or without modification, by the House within the next ten days on which the House sits after the resolution is passed by the Committee, and also if a Bill varying or renewing the tax is not read a second time by the House within the next twenty days on which the House sits after the resolution is agreed to ; and
- (b) The resolution shall cease to have statutory effect if Parliament is dissolved or prorogued, or an Act comes into operation varying or renewing the tax, or the resolution is rejected by the House, or the provisions giving effect to the resolution are rejected during the passage of the Bill containing those provisions through the House, and the resolution, if modified by the House, shall have effect under this Act as so modified ; and
- (c) Where the resolution so ceases to have statutory effect, or the said period terminates, before an Act comes into operation varying or renewing the tax, any money paid in pursuance of the resolution shall be repaid or made good, and any deduction made in pursuance of the resolution shall be deemed to be an unauthorised deduction ; and
- (d) Where the tax as varied or renewed by the resolution is modified, either by the House or by the Act varying or renewing the tax, any money which has been paid in pursuance of the resolution, which would not have been payable under the new conditions affecting the tax shall be repaid or made good, and any deduction made in pursuance of the resolution shall, so far as it would not have been authorised under the new conditions affecting the tax, be deemed to be an unauthorised deduction ; and
- (e) When during any session a resolution has had statutory effect under this Act, statutory effect shall not be again given under this Act in the same session to the same resolution or to a resolution having the same effect.

(2) The period for which a resolution shall have statutory force under this section shall be a period expiring at the end of four months after the date on which the resolution is expressed to take effect, or, if no such date is expressed, after the date on which the resolution is passed by the Committee.

(3) In this Act any expression referring to the renewal of a tax shall be deemed to refer also to the reimposition of a tax.

2.—(1) Any payment or deduction made on account of a temporary tax within one month after the date of the expiration of the tax shall, if the payment or deduction would have been a legal payment or deduction if the tax had not expired, be deemed to be a legal payment or deduction, subject to the condition that if a resolution is not passed by the House of Commons or by the Committee of Ways and Means of the House of Commons (if that Committee is a Committee of the whole House) within that month for the renewal of the tax, or if such a resolution is passed within that month but ceases to have statutory effect under this Act, any money so paid or deducted shall be repaid or made good, and that if the tax is ultimately renewed at a different rate, or with modifications, any amount paid or deducted which could not properly have been paid or deducted under the new conditions affecting the tax shall be repaid or made good.

Payments and deductions made on account of temporary tax before renewal of tax.

For the purposes of this provision, the expression "temporary tax" means a tax which has been imposed or renewed for a limited period not exceeding eighteen months, and was in force or imposed during the previous financial year.

(2) Section ninety-five of the Finance (1909-10) Act, 1910, shall have effect with respect to any duties imposed by the Finance Act of this or any previous year, with the substitution of a reference to that Finance Act for any reference in that section to "this Act," but this provision shall not affect any past proceeding in any court of law.

10 Edw. 7.
& 1 Geo. 5. c. 8.

3. This Act shall apply only to duties of customs and excise and to income tax.

Application of Act.

4. This Act may be cited as the Provisional Collection of Taxes Act, 1913.

Short title.

CHAPTER 4.

An Act to provide for the Temporary Discharge of Prisoners whose further detention in prison is undesirable on account of the condition of their Health.

[25th April 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :